

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #10	CCRB Case #: 201609657	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/22/2016 8:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/22/2018	Precinct: 79
Date/Time CV Reported Tue, 11/22/2016 8:25 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/22/2016 8:25 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jorge Morales	16601	957871	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Harold Hernandez	15658	943526	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jorge Morales	Discourtesy: Police Officer Jorge Morales gestured discourteously toward § 87(2)(b)	A . Unsubstantiated

Case Summary

On November 22, 2016, § 87(2)(b) filed her complaint with the CCRB via telephone. On November 22, 2016, at approximately 8:15 AM, § 87(2)(b) called 311 to file a complaint regarding her neighbor's construction at § 87(2)(b) in Brooklyn. The 311 operator called the police to assist in taking § 87(2)(b)'s complaint. Police Officer Harold Hernandez and PO Jorge Morales of the 79th precinct responded to § 87(2)(b)'s complaint. PO Hernandez was the driver and PO Morales was sitting in the passenger seat. § 87(2)(b) informed PO Hernandez and PO Morales of the nature of her complaint. PO Hernandez and PO Morales informed § 87(2)(b) they could not take her complaint as it was a civil matter. As they drove away, PO Morales allegedly raised his right hand and extended his middle finger towards § 87(2)(b) (**Allegation A**).

There is no video footage of the incident.

§ 87(2)(b) was not issued a summons.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation, however, the subject officer, PO Morales, rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On February 24, 2017, an inquiry was sent to the Office of the New York City Comptroller for any notice of claim filed by § 87(2)(b). The results of the inquiry will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 2).
- PO Morales has been a member of the NYPD for 2 years. PO Morales has no prior CCRB cases (Board Review 3).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) did not obtain a name or badge number for the subject officer. § 87(2)(b) was only able to physically describe the subject officer as a uniformed fair-skinned male who weighed approximately 180lbs. and wore a hat. According to the EVENT information, the 79th Precinct Auto Response 1 vehicle responded to radio call for a complaint at § 87(2)(b) on November 22, 2016. According to the 79th Precinct's Roll Call Tour 2 for November 22, 2016, PO Hernandez and PO Morales were assigned to Auto Response 1. § 87(2)(b) stated the officer in the driver's seat weighed approximately 200lbs. and appeared taller than the officer in the passenger seat. According to PO Hernandez's MOS

photo and pedigree information, he is a Hispanic male who weighs approximately 210lbs and is 5'11" tall. According to PO Morales's MOS photo and pedigree information, he is a Hispanic male who weighs approximately 160lbs and is 5'6" tall. During his in-person interview, PO Hernandez testified that he was the driver, and, PO Morales was in the passenger seat during their interaction with § 87(2)(b). During his in-person interview, PO Morales confirmed that he was in the passenger seat during their interaction with § 87(2)(b).

§ 87(2)(g)

Allegation A -Discourtesy: Police Officer Jorge Morales gestured discourteously toward

§ 87(2)(b)

It is undisputed that PO Morales and PO Hernandez responded to § 87(2)(b)'s complaint and interacted with § 87(2)(b). § 87(2)(g)

§ 87(2)(b) (Board Review 4) called 311 to file a complaint regarding her neighbors' renovations, as it was exposing § 87(2)(b)'s residence's foundation. The 311 operator told § 87(2)(b) that they were going to call the police, as 311 could not do anything immediately regarding § 87(2)(b)'s complaint. Roughly 30 minutes later, a marked police vehicle arrived at § 87(2)(b). § 87(2)(b) approached the passenger side of the marked vehicle. PO Morales and PO Hernandez inquired on the nature of § 87(2)(b)'s complaint. § 87(2)(b) informed them of her complaint. PO Hernandez informed § 87(2)(b) that her complaint was a civil matter and she needed to call the Housing Authority. § 87(2)(b) informed the officers that the 311 operator told her the police could take a complaint. § 87(2)(b) asked PO Hernandez and PO Morales if they were going to exit their vehicle and see what she was complaining about or if her house needed to collapse on her and her family before they would take her complaint seriously. PO Hernandez told § 87(2)(b) no one was injured and it was a civil complaint and had nothing to do with the police. Before § 87(2)(b) could respond, PO Hernandez and PO Morales drove away. PO Morales, who was seated in the passenger seat, raised his right hand and extended his middle finger towards § 87(2)(b) as they drove away.

PO Hernandez was interviewed at the CCRB on December 29, 2016, and PO Morales was interviewed at the CCRB on January 6, 2017. § 87(2)(g)

PO Hernandez and PO Morales testified (Board Review 5, 6) that on November 22, 2016, they were assigned to the 79th Precinct Auto Response, 1 when they received a radio call for a "68 (See Complainant) § 87(2)(b). PO Hernandez was the driver and PO Morales was seated in the passenger seat. Upon arrival at § 87(2)(b), § 87(2)(b) approached their vehicle. § 87(2)(b) requested a police report be taken regarding her neighbor's construction, as § 87(2)(b) believed it was damaging her property. PO Morales asked if § 87(2)(b) had contacted the Department of Buildings and § 87(2)(b) replied that she had. PO Morales asked § 87(2)(b) if she had contacted the construction company who was responsible for her neighbor's renovations and § 87(2)(b) replied that she had. PO Hernandez informed § 87(2)(b) they could not take a police report for that kind of complaint and instructed § 87(2)(b) to call the Department of Buildings to file a complaint. § 87(2)(b) stated that it was "bullshit", as 311 had informed her that the police would take her complaint. PO Hernandez informed § 87(2)(b) she was wrongly advised and again instructed her to contact Department of Buildings. § 87(2)(b) began to "lecture" PO Hernandez

and PO Morales how the police are there to protect and serve and § 87(2)(b) pays taxes and therefore they should take a report. PO Hernandez informed § 87(2)(b) that the issue she was having was not a police matter and he would not be taking a police report. After speaking to § 87(2)(b) for 10 minutes, PO Hernandez and PO Morales informed § 87(2)(b) they had another job to respond to. PO Morales told § 87(2)(b) “Ma’am have a good one” before they drove away. PO Morales denied he raised his right hand and extended his middle finger towards § 87(2)(b) PO Hernandez denied seeing PO Morales raise his right hand and extend his middle finger towards § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: 10

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date